
Contractor's Rebuttal — Determination ENG-NRB4-0072

Nandira River Bridge Project — Package NRB-4

Document Reference:	CTR-NRB4-0155
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From:	Contractor, Project Manager, Sagara Constructions Pvt. Ltd.
To:	Engineer, Meridian Engineering Consultants

Subject: Rebuttal — Determination ENG-NRB4-0072 — Pier P4 Pile Position P4-N4

We refer to the Engineer's determination ENG-NRB4-0072 dated 10-Mar-2023, granting an extension of the Time for Completion of 3 weeks, rather than the 6 weeks claimed in CTR-NRB4-0142, in respect of pile position P4-N4.

We do not accept the apportionment made. As set out in our Critical Path Analysis CPA-NRB4-001, the redesign process necessitated by the ground condition — comprising the geotechnical investigation and Site Instruction SI-NRB4-027 — was itself the controlling constraint on completion of pile position P4-N4 throughout the period Rig PR-2 was out of service. Boring could not have proceeded to a design that did not yet exist, whether or not Rig PR-2 was available, until SI-NRB4-027 was issued on 22-Nov-2022. We submit that the rig's unavailability was therefore not, in fact, an independently operative cause during the period before that instruction was issued, and that the Engineer's apportionment overstates the effect of the plant breakdown.

We nonetheless note the Engineer's determination and will govern ourselves accordingly pending any further resolution of this matter, without prejudice to our position that the full 6 weeks claimed remains due.

Regards,
Project Manager

Sagara Constructions Pvt. Ltd.